



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 07, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20630
(SECOND REVISION)

EXPIRATION DATE: 2028-02-29

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Arc3 Gases, Inc.
Dunn, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials in DOT Specification 3AL cylinders manufactured from aluminum alloy 6061-T6 that are requalified every ten years rather than every five years using 100% Ultrasonic Examination. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 180.209(a), 180.209(b), 180.209(b)(1)(iv) in that requalifying certain cylinders every ten years is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Arc3 Gases, Inc., dated February 12, 2024 submitted in accordance with § 107.109.

Tracking Number: 2024024424

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Liquefied or non-liquefied compressed gases, or mixtures of such compressed gases, classed as Division 2.1 (flammable gas), Division 2.2 (non-flammable gas), Division 2.3 (inhalation hazard), which are authorized in the hazardous materials regulations for transportation in DOT Specification 3AL cylinders and cylinders manufactured under DOT-SP 12440.	2.1, 2.2 or 2.3 as applicable	As appropriate	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is an aluminum cylinder that is manufactured from aluminum alloy 6061-T6 in accordance with the DOT-3AL Specification or DOT-SP 12440. The cylinder is subjected to periodic retesting, re-inspection and marking prescribed in §§ 180.205, 180.209, and 180.213 except that:

- (1) The cylinder is not required to be hammer tested prior to each refill;
- (2) Each cylinder that is used to transport Division 2.1 or 2.2 materials must be retested at least once every 10 years by utilizing the 100% Ultrasonic Examination (UE) of the sidewall by an approved facility holding a valid UE special permit except that for all cylinders under 6" in diameter the flat bottom hole (FBH) used as the referenced standard (calibration) must have a diameter and depth less than or equal to 1/8" and 0.025", respectively. For cylinders over 6" in diameter, the FBH must have a diameter and depth less than or equal to 1/4" and 1/6 of t_{min} depth. Cylinders used to transport Division 2.3 materials must be retested at least once every 5 years in accordance with the same procedures. The 10-year requalification period is not authorized for cylinders used to transport Division 2.3 materials.
- (3) Each cylinder passing retests under the provisions of this special permit must be marked in accordance with the applicable UE special permit. Additionally, each cylinder must be plainly marked "DOT-SP 20630" followed by "*" as specified in § 180.209(b)(1)(vi). Cylinders whose outside diameter is less than 5.0" may be marked using a 1/8" high character or alternatively, a label

bearing “DOT-SP 20630” followed by “*” may be affixed to the cylinder’s sidewall near the shoulder region. Marking and/or labeling must be permanent and durable through each requalification period.

b. OPERATIONAL CONTROLS:

- (1) Cylinders under this special permit must remain in dedicated service.
- (2) Prior to each filling, the company filling the cylinder must ensure that:
 - (i) Gas mixtures are chemically compatible with the cylinder material (aluminum alloy) and do not have an adverse effect on the cylinder’s strength.
 - (ii) The quality of the gas or gaseous mixture meets the requirements of § 180.209(b)(ii) and has a dew point below -52 °F at 1 atmosphere.
- (3) Prior to each fill the cylinder under this special permit must be externally inspected in accordance with CGA Pamphlet C6.1.
- (4) Any cylinder exhibiting evidence of fire or excessive heat damage may not be retested under the terms of this special permit.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and rail freight.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BB